

necessarily required to make such an adjustment.” (*Id.*, at 505.) Counsel have computed a lodestar fee (combined for the three law firms that represented plaintiffs), the lodestar is calculated at \$478,420, based on 567.60 hours, which results in a blended rate of \$842. The imputed multiplier is 4.06.

Even based on the percentage of the common fund, plaintiffs’ request for 38% is higher than typical in these cases. A fee of 30% of the recovery would still constitute \$1,530,000 (and would leave an imputed multiplier of 3.20). While plaintiffs’ moving papers discuss the difficulties of this type of litigation, there appears to be nothing extraordinary about the circumstances of this case. The Court finds that the reasonable fee here is \$1,530,000 and grants the motion in that amount.

Litigation costs of \$26,179.80 are reasonable and are approved.

Settlement administration costs of \$21,975 are reasonable and are approved.

The requested representative payment of \$12,500 for each plaintiff (\$50,000 total) is reviewed now, under the Criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Each plaintiff has filed a declaration attesting to their involvement in the matter and the time they spent on it. Based primarily on the size of the total recovery, the Court awards each plaintiff \$12,500.

D. Conclusion

The Court requires plaintiffs to submit a supplemental declaration from the settlement administrator indicating whether any objections or requests for exclusion were received before the January 15, 2026 deadline. **The declaration is to be provided no later than February 5, 2026, and the hearing on this matter will be continued to February 19, 2026.**

Until that declaration is provided and reviewed (so that any objectors may be heard), the Court cannot find whether the proposed settlement is sufficiently fair, reasonable, and adequate to approve.

If approval is granted, counsel will be directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

23. 9:00 AM CASE NUMBER: MSC22-00088

CASE NAME: KALAMAS VS. JOHN MUIR HEALTH

***HEARING ON MOTION IN RE: STRIKE OF TAX COSTS (CONTINUED FROM 12.18.2025)**

FILED BY:

TENTATIVE RULING:

Continued by stipulation and order (entered January 20, 2026), to March 5, 2026, 9:00 a.m., in Department 10, the Honorable Julia Campins. As of March 1, 2026, this matter is assigned to Judge

Campins for all purposes.

**Law & Motion
Add On**

24. 9:00 AM CASE NUMBER: C24-00237

CASE NAME: CONNOR BEARE VS. THE LAW OFFICES OF MITCHELL D. BLUHM & ASSOCIATES, LLC

***HEARING ON MOTION IN RE: PRELIMINARY APPROVAL OF CLASS ACTION SETTLEMENT
(CONTINUED FROM: 01/22/2026)**

FILED BY:

TENTATIVE RULING:

This matter was first heard on January 22, 2026, and continued to resolve one matter concerning the cy pres beneficiary. That matter having been resolved, the motion is granted.

Plaintiff Connor Beare moves for preliminary approval of his class action with defendant Law Offices of Mitchell D. Bluhm & Associates, LLC and Robert Bradley Ridgeway ("Defendants").

A. Background and Settlement Terms

The original complaint was filed January 31, 2024, raising class action claims under the California Rosenthal Fair Debt Collection Practices Act and California Civil Code sections 1812.700-1812.702, on behalf of 13 individuals who received debt-collection letters from defendants. Defendants allegedly did not provide a statutorily-required "Consumer Collection Notice" in proper form and substance in connection with efforts to collect a debt. It further alleged that Robert Ridgeway, an attorney employed by the law office in question, had failed to obtain a debt collection license from the California Department of Financial Protection and Innovation as required by Financial Code §100001.

The proposed settlement would certify a class of thirteen persons who received the letters from defendant. Defendant would pay \$6,500 (based on a statutory penalty provision), with a minimum payment of \$500 to each class member. Defendants would be primarily responsible for administering the notice and implementation of the settlement.

If some class members are located and sent checks, but do not cash the checks, the remaining funds would be paid to a cy pres recipient, Bay Area Legal Aid. Counsel is required to attest that they do not have any pecuniary interest in the cy pres recipient, and must "notify the court if the attorney has a connection to or a relationship with a nonparty recipient." (C.C.P. § 382.4.) After the Court issued its tentative ruling indicating that a declaration was needed to comply with this requirement, a declaration adequately attesting to the fact that none of plaintiff's counsel "has any interest or involvement in the governance or work of the proposed cy pres recipient." This is sufficient. In addition, the cy pres recipient must be qualified under Code of Civil Procedure section 384(b), which requires that cy pres funds be provided "to nonprofit organizations or foundations to support projects